

STATE OF NEW YORK

868--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. ROSENTHAL -- read once and referred to the Committee on People with Disabilities -- reference changed to the Committee on Social Services -- recommitted to the Committee on Social Services in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law, in relation to requiring supervising state and city agencies to provide an informational notice to supportive housing tenants

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The social services law is amended by adding a new section
2 131-cc to read as follows:

3 § 131-cc. Supportive housing tenants; required informational notice.
4 1. For purposes of this section, the following terms shall have the
5 following meanings:

6 (a) "Dwelling unit" shall mean any building or structure or portion
7 thereof which is occupied in whole or in part as the home, residence or
8 sleeping place of one or more individuals.

9 (b) "Supervising agencies" shall mean the office of mental health,
10 which may coordinate with the New York state office of temporary and
11 disability assistance, the New York state department of health, the New
12 York state office of addiction services and supports, the New York state
13 office for people with developmental disabilities, the New York city
14 department of health and mental hygiene, New York city department of
15 housing preservation and development, the New York city HIV/AIDS
16 services administration, and the New York city human resources adminis-
17 tration to draft the notice.

18 (c) "Supportive housing" means affordable, permanent, or transitional
19 housing with support services for tenants.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (d) "Tenant" means an individual occupying, or intending to occupy, a
2 dwelling unit for thirty consecutive days or more.

3 (e) "Supportive housing tenant" means any tenant residing in a dwell-
4 ing unit that is funded, in whole or in part, pursuant to a contract
5 with any city or state agency to provide supportive housing and/or
6 services. Such definition shall include tenants occupying apartments
7 leased by a non-governmental agency pursuant to a supportive housing
8 contract, and to both licensed and unlicensed programs.

9 2. Supervising agencies shall be required to provide every supportive
10 housing tenant or potential tenant at the time of an applicant interview
11 to obtain housing, at the signing of an initial lease, at each lease
12 renewal and upon request at any time, a notice of tenant rights approved
13 by such supervising agency using plain and simple language. Such notice
14 shall be made available in English and in the primary language spoken by
15 the tenant or potential tenant. Any supportive housing landlord or
16 supervising agency initiating an eviction proceeding shall be required
17 to serve such notice to any tenant or occupant with any notification of
18 eviction, notice of termination, notice to cure, or notification of
19 termination of assistance. Such notice shall include, but not be limited
20 to, the following information:

21 (a) whether the dwelling unit is subject to state rent stabilization
22 laws or protections under article six-A of the real property law and if
23 not, the reason for exemption from such laws. For dwelling units that
24 are subject to state rent stabilization laws, such notice shall also
25 provide information on how to obtain a rent history from the division of
26 housing and community renewal;

27 (b) whether the dwelling unit is located in a building that is in
28 receipt of a tax exemption or abatement, including but not limited to
29 abatements or exemptions pursuant to sections four hundred twenty-one-a
30 or four hundred twenty-one-g of the real property tax law. If the build-
31 ing is in receipt of an exemption or abatement, the notice shall include
32 the abatement or exemption start and end dates;

33 (c) that a tenant's eviction must be sought through a court proceeding
34 when required by section seven hundred eleven or seven hundred thirteen
35 of the real property actions and proceedings law, and that a tenant may
36 bring special proceedings pursuant to article seven of the real property
37 actions and proceedings law if they are unlawfully evicted and any rele-
38 vant phone numbers that a tenant may contact for legal advice and possi-
39 ble legal representation;

40 (d) the tenant's right to enforce any applicable housing maintenance
41 codes, information concerning how to report violations of such codes to
42 the local housing agency and to the building owner, and name and contact
43 information for the person or people responsible for maintaining appli-
44 cable housing maintenance code standards and responding to emergencies;

45 (e) the tenant's right to request reasonable accommodations and the
46 process for requesting such accommodations, the right to be protected
47 against discrimination pursuant to article fifteen of the executive law
48 and any other applicable federal, state and local laws and the procedure
49 for reporting cases of discrimination to the New York state division of
50 human rights;

51 (f) the tenant's right to receipts for payments made in exchange for
52 occupancy pursuant to section two hundred thirty-five-e of the real
53 property law and the tenant's right to receive a copy on the overlease
54 if such housing provider is subleasing in addition to the sublease;

55 (g) the tenant's right to live with family and/or one additional occu-
56 pant in a dwelling unit pursuant to section two hundred thirty-five-f of

1 the real property law, the tenant's right to form, join or participate
2 in a tenant group pursuant to section two hundred thirty of the real
3 property law;

4 (h) whether the dwelling unit is subject to 14 NYCRR section 595, and
5 if so, the tenant's rights pursuant to such section;

6 (i) the tenant's right to be free from harassment, and what consti-
7 tutes as tenant harassment under section two hundred thirty-five-d of
8 the real property law;

9 (j) the building's regulatory scheme, including:

10 (i) each funding stream used to provide social services, subsidize
11 rents, or underwrite the development of the dwelling unit or property
12 and the contact information for the agency affiliated with such funding
13 stream;

14 (ii) the name or names of the program or programs pursuant to which
15 the tenant is occupying the dwelling unit;

16 (iii) the name of the supervising agency administering the program
17 and/or providing services or assistance pursuant to subparagraphs (i)
18 and (ii) of this paragraph;

19 (iv) the grievance policy or procedure to register and hear tenant
20 complaints;

21 (v) any applicable state, local or federal regulations;

22 (vi) contact information for the supervising agency pursuant to
23 subparagraph (iii) of this paragraph;

24 (vii) the total rent, tenant rent and agency subsidy amounts; and

25 (viii) the manner in which rent shall be paid;

26 (k) the tenant's right to be provided access to legal services if
27 facing eviction in housing court and all other relevant tenant's rights
28 and procedures and agency resources for eviction prevention;

29 (l) any additional information related to tenant's rights provided in
30 writing or relayed orally to a supportive housing applicant during an
31 interview with such supervising agencies; and

32 (m) contact information for the appropriate supervising agencies for
33 tenants to submit complaints including violations of this section.

34 3. Supervising agencies shall draft the notice required pursuant to
35 subdivision two of this section within sixty days of the effective date
36 of this section.

37 4. Supervising agencies shall receive, investigate, and respond to
38 complaints concerning violations of this section. All complaints and
39 responses received by any supervising agencies shall be compiled and
40 posted on the office of mental health's website and shall include the
41 date the complaint was submitted, any results of the complaint, and the
42 date of the conclusion of any investigation resulting from the
43 complaint. All complaints and responses shall be posted on the office
44 of mental health's website within thirty days.

45 5. The office of mental health, in collaboration with supervising
46 agencies, shall create an online portal and telephone hotline where
47 tenants can request an additional copy of such tenant's bill of rights
48 at any time.

49 § 2. The real property law is amended by adding a new section 231-d to
50 read as follows:

51 § 231-d. Supportive housing bill of rights notice. 1. Any landlord, as
52 defined in subdivision two of section two hundred eleven of this chap-
53 ter, of a supportive housing building as defined by section one hundred
54 thirty-one-cc of the social services law, shall append to or incorporate
55 any initial lease, renewal lease, notice required pursuant to paragraph
56 (a) of subdivision one of section two hundred twenty-six-c of this arti-

1 cle, notice required pursuant to subdivision two of section seven
2 hundred eleven of the real property actions and proceedings law, or
3 petition pursuant to section seven hundred forty-one of the real proper-
4 ty actions and proceedings law, the notice as described in section one
5 hundred thirty-one-cc of the social services law and approved by the
6 pertinent supervising agency as described in that section.

7 § 3. This act shall take effect on the one hundred twentieth day after
8 it shall have become a law.